

9:00 AM

Line 5

25-CIV-08305 LUISA CABRERA, ET AL VS. UDR BAY TERRACE L.P., ET AL

LUISA CABRERA
UDR TEXAS PROPERTIES LP

MICHAEL M ASTANEHE
STACY M. DOOLEY

Defendant UDR Texas Properties L.P.'s Motion to Compel Plaintiffs' Responses to Form Interrogatories – General, Set One and Special Interrogatories, Set One; and Request for Sanctions for \$3,500.00

TENTATIVE RULING:

Defendant UDR Texas Properties LP's ("Defendant") unopposed motion to compel Plaintiffs to serve further responses to Defendant's Form Interrogatories (Set One) and Special Interrogatories (Set One), and request for sanctions, filed May 6, 2026, is GRANTED-in-part and DENIED-in-part, as set forth below.

Form Interrogatories – DENIED without prejudice

Defendant does not appear to have filed a Separate Statement setting forth the disputed form interrogatories and Plaintiffs' corresponding responses. (Calif. Rules of Court, rule 3.1345.)

Special Interrogatories - GRANTED

Plaintiffs' response to each of the 247 Special Interrogatories consists of a laundry list of objections, followed by the statement:

"Responding Party cannot identify each and every fact responsive to this special interrogatory due to the multi-year nature of the tenancy."

Although 247 special interrogatories far exceeds the statutory limit of 35 (Code Civ. Proc. § 2030.030(b)), Plaintiffs did not file a motion for protective order based on the large number of interrogatories. Plaintiffs' responses are plainly deficient, because they provide no responsive information at all. Plaintiffs also have not opposed the present motion.

The Court notes that while the number of special interrogatories is large, they are closely tied to the Complaint's allegations, which consists of 58 pages of allegations and 12 asserted causes of action.

Within 20 days of service of this Order, Plaintiffs shall provide further, verified, code-compliant responses to all 247 of Defendant's Special Interrogatories (Set One).

Monetary Sanctions – GRANTED-in-part

As noted, Plaintiffs did not file a motion for protective order (Code Civ. Proc. § 2030.090) and have not opposed this motion. When Defendants noticed an Informal Discovery Conference (IDC), Plaintiffs also failed to file an IDC Statement, which the Commissioner noted “largely renders the holding of an IDC an unproductive use of time.” (June 22, 2026 Minute Order.) This left Defendant with no option but to move to compel further responses.

In the Court’s discretion, Defendant’s request for monetary sanctions is GRANTED-in-part, in the amount of \$1,000, against Plaintiffs and their counsel, Michael Astanehe, jointly and severally, which shall be paid within 30 days of notice of entry of this Order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

25-CIV-09662 MICHAEL MULATE ARGAW VS. MARK ZUCKERBERG, CEO OF META
PLATFORMS INC., ET AL

MICHAEL MULATE ARGAW	PRO SE
MARK ZUCKERBERG, CEO OF META PLATFORMS INC.	MICHELLE VISSER

Defendants' Demurrer to Complaint

TENTATIVE RULING:

Defendants Mark Zuckerberg's and Meta Platforms, Inc.'s Demurrer to Complaint is ORDERED OFF CALENDAR.

The proof of service of the notice of demurrer and the accompanying papers indicates service was attempted by mail and electronic mail. (Mar. 20, 2026 Proof of Service, p. 2.) As to the latter manner of service, there is no indication that Plaintiff Michael Mulate Argaw has expressly consented to electronic service as an unrepresented party, which is required. (See Code Civ. Proc., § 1010.6, subd. (c) [requiring express consent to e-serve party appearing in propria persona]; Cal. Rules of Court, rule 2.251(b).)

As to the former, the mail was addressed to Argaw at 23940 Summit Ridge Terrace, Germantown, Maryland 20870. While apparently that may be Argaw's address of record in prior or other pending cases, his address of record *in this case* is 12220 Hunter's Chase Drive, Austin, Texas 78729. (Dec. 10, 2025 Complaint, p. 1; see Code Civ. Proc., § 1013, subd. (a) [mail must be addressed to office or residence]; Cal. Rules of Court, rule 2.111(1) [office or address is to be listed on first page of filing].)

Accordingly, there is no indication that notice of the demurrer was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Therefore, the demurrer is ordered off calendar.

The hearing on the demurrer may be placed back on calendar by Defendants Mark Zuckerberg and Meta Platforms, Inc. by properly serving the demurrer and supporting papers along with filing and serving an amended notice of demurrer. If an amended notice is not filed within ten (10) days of entry of this order, then, at that time, the demurrer will be deemed overruled and Defendants Mark Zuckerberg and Meta Platforms, Inc. will have ten (10) days to answer or otherwise plead to the Complaint pursuant to rule 3.1320(j) of the California Rules of Court.
